

STATE OF WISCONSIN

CIRCUIT COURT

DANE COUNTY, WI
2026CV002166

JOHN IMES,

Petitioner,

Case No. 26-CV-2166

v.

SHOREWOOD HILLS BOARD OF TRUSTEES,

Respondent.

**RESPONDENT'S ANSWER TO PETITIONER'S VERIFIED
PETITION FOR WRIT OF CERTIORARI**

NOW COMES the Respondent, Shorewood Hills Board of Trustees, by its attorneys, Crivello, Nichols & Hall, S.C., and as and for its Answer to Petitioner's Verified Petition for Writ of Certiorari, admit, deny and affirmatively allege as follows:

NATURE OF ACTION

1. In answering paragraph 1 of the Verified Petition, admit the nature of the action, but deny that the May 12, 2026, Written Decision of the Shorewood Hills Board of Trustees should be reversed.

PARTIES

2. In answering paragraph 2 of the Verified Petition, deny the allegation that the Respondent has not filed the materials formalizing removal under Wis. Stat. § 17.16(8)(b). In further answering the paragraph, admit the remaining allegations contained therein.

3. In answering paragraph 3 of the Verified Petition, admit the allegations contained therein.

4. In answering paragraph 4 of the Verified Petition, admit the allegations contained therein.

5. In answering paragraph 5 of the Verified Petition, admit the allegations contained therein.

6. In answering paragraph 6 of the Verified Petition, admit the allegation contained therein.

7. In answering paragraph 7 of the Verified Petition, admit the allegation contained therein.

JURISDICTION AND VENUE

8. In answering paragraph 8 of the Verified Petition, admit jurisdiction and venue, but deny that the May 12, 2026, Written Decision of the Shorewood Hills Board of Trustees should be reversed.

9. In answering paragraph 9 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

10. In answering paragraph 10 of the Verified Petition, admit the allegations contained therein.

RELEVANT STATUTES

11. In answering paragraph 11 of the Verified Petition, admit the allegation contained therein.

12. In answering paragraph 12 of the Verified Petition, admit the allegation contained therein.

13. In answering paragraph 13 of the Verified Petition, admit the allegations contained therein, but affirmatively allege that Petitioner did not quote all of the requirements of Wis. Stat. § 17.16(3).

14. In answering paragraph 14 of the Verified Petition, admit the allegations contained therein, but affirmatively allege that Petitioner did not quote all of the requirements of Wis. Stat. § 17.16(3).

RELEVANT FACTS

Petitioner's Tenure on the Board

15. In answering paragraph 15 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

16. In answering paragraph 16 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

17. In answering paragraph 17 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

18. In answering paragraph 18 of the Verified Petition, admit the allegation contained therein.

The Complaint

19. In answering paragraph 19 of the Verified Petition, admit the allegations contained therein.

20. In answering paragraph 20 of the Verified Petition, admit the allegation contained therein.

21. In answering paragraph 21 of the Verified Petition, admit the allegations contained therein.

22. In answering paragraph 22 of the Verified Petition, admit the allegations contained therein.

23. In answering paragraph 23 of the Verified Petition, admit the allegations contained therein. In further answering said paragraph, affirmatively allege that the proposed Agenda was not the official Agenda of the Village Board of Trustees.

24. In answering paragraph 24 of the Verified Petition, admit the allegations contained therein. In further answering said paragraph, affirmatively allege that the proposed Agenda was not the official Agenda of the Village Board of Trustees.

The Recusal and Adjournment Request

25. In answering paragraph 25 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

26. In answering paragraph 26 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

27. In answering paragraph 27 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

28. In answering paragraph 28 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

29. In answering paragraph 29 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

30. In answering paragraph 30 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

31. In answering paragraph 31 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

32. In answering paragraph 32 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

33. In answering paragraph 33 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

34. In answering paragraph 34 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

35. In answering paragraph 35 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

36. In answering paragraph 36 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

37. In answering paragraph 37 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

Petitioner's Answer to the Complaint

38. In answering paragraph 38 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

39. In answering paragraph 39 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

40. In answering paragraph 40 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

41. In answering paragraph 41 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

The Removal Hearing

42. In answering paragraph 42 of the Verified Petition, admit the allegations contained therein.

43. In answering paragraph 43 of the Verified Petition, admit the allegation contained therein.

44. In answering paragraph 44 of the Verified Petition, admit that Petitioner requested that Trustees Utschig and Van Asten recuse themselves. In further answering said Petition, deny having sufficient knowledge or information to form a belief as to the truth of the remaining allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

45. In answering paragraph 45 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

46. In answering paragraph 46 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

47. In answering paragraph 47 of the Verified Petition, admit the allegation contained therein.

48. In answering paragraph 48 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

49. In answering paragraph 49 of the Verified Petition, admit the allegations contained therein.

50. In answering paragraph 50 of the Verified Petition, deny the allegation contained therein.

51. In answering paragraph 51 of the Verified Petition, admit the allegations contained therein.

52. In answering paragraph 52 of the Verified Petition, deny the allegations contained therein.

53. In answering paragraph 53 of the Verified Petition, deny the allegations contained therein.

54. In answering paragraph 54 of the Verified Petition, deny the allegations contained therein.

55. In answering paragraph 55 of the Verified Petition, deny the allegation contained therein.

56. In answering paragraph 56 of the Verified Petition, deny the allegation contained therein.

57. In answering paragraph 57 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

58. In answering paragraph 58 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

59. In answering paragraph 59 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

60. In answering paragraph 60 of the Verified Petition, admit that the Village Board of Trustees voted 4-3 to remove Petitioner from office, and affirmatively allege that Petitioner should

not have voted. In further answering said paragraph, deny having sufficient knowledge or information to form a belief as to the truth of the remaining allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

61. In answering paragraph 61 of the Verified Petition, deny the allegations contained therein.

62. In answering paragraph 62 of the Verified Petition, deny the allegations contained therein.

FIRST CLAIM
(Writ of Certiorari – Deprivation of Due Process)

63. In answering paragraph 63 of the Verified Petition, reallege and incorporate paragraphs 1 through 62 of this Answer as though set forth in full herein.

64. In answering paragraph 64 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

65. In answering paragraph 65 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

66. In answering paragraph 66 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

67. In answering paragraph 67 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

68. In answering paragraph 68 of the Verified Petition, deny the allegations contained therein.

69. In answering paragraph 69 of the Verified Petition, deny the allegations contained therein.

70. In answering paragraph 70 of the Verified Petition, deny the allegations contained therein.

71. In answering paragraph 71 of the Verified Petition, deny the allegations contained therein.

72. In answering paragraph 72 of the Verified Petition, deny the allegations contained therein.

73. In answering paragraph 73 of the Verified Petition, deny the allegations contained therein.

74. In answering paragraph 74 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

75. In answering paragraph 75 of the Verified Petition, deny the allegations contained therein.

76. In answering paragraph 76 of the Verified Petition, deny the allegations contained therein.

SECOND CLAIM
(Writ of Certiorari – Application of Incorrect Legal Standard)

77. In answering paragraph 77 of the Verified Petition, reallege and incorporate paragraphs 1 through 76 of this Answer as though set forth in full herein.

78. In answering paragraph 78 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

79. In answering paragraph 79 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

80. In answering paragraph 80 of the Verified Petition, deny the allegations contained therein.

81. In answering paragraph 81 of the Verified Petition, deny the allegations contained therein.

82. In answering paragraph 82 of the Verified Petition, deny the allegations contained therein.

83. In answering paragraph 83 of the Verified Petition, deny the allegations contained therein.

84. In answering paragraph 84 of the Verified Petition, deny the allegations contained therein.

85. In answering paragraph 85 of the Verified Petition, deny the allegations contained therein.

86. In answering paragraph 86 of the Verified Petition, deny the allegations contained therein.

87. In answering paragraph 87 of the Verified Petition, deny the allegations contained therein.

88. In answering paragraph 88 of the Verified Petition, deny the allegations contained therein.

89. In answering paragraph 89 of the Verified Petition, deny the allegations contained therein.

90. In answering paragraph 90 of the Verified Petition, deny the allegations contained therein.

THIRD CLAIM
(Writ of Certiorari – Insufficient Evidence)

91. In answering paragraph 91 of the Verified Petition, reallege and incorporate paragraphs 1 through 90 of this Answer as though set forth in full herein.

92. In answering paragraph 92 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

93. In answering paragraph 93 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

94. In answering paragraph 94 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

95. In answering paragraph 95 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

96. In answering paragraph 96 of the Verified Petition, deny having sufficient knowledge or information to form a belief as to the truth of the allegations contained therein and, accordingly, deny the same and put the Petitioner to his proof thereon.

97. In answering paragraph 97 of the Verified Petition, deny the allegations contained therein.

98. In answering paragraph 98 of the Verified Petition, deny the allegations contained therein.

99. In answering paragraph 99 of the Verified Petition, deny the allegations contained therein.

100. In answering paragraph 100 of the Verified Petition, deny the allegations contained therein.

AFFIRMATIVE DEFENSES

NOW COMES the Respondent, Shorewood Hills Board of Trustees, by its attorneys, Crivello, Nichols & Hall, S.C., and as and for its separate and additional affirmative defenses, allege as follows:

1. The Respondent had the authority to make the decisions, followed proper legal procedures and standards, and properly exercised its authority.

2. Upon information and belief, the Petitioner's Verified Petition may be barred by applicable statutes of limitation.

3. Upon information and belief, the Summons and Verified Petition may not have been properly served on Respondent.

4. The Respondent reserves the right to plead additional affirmative defenses as they become known.

WHEREFORE, the Respondent, Shorewood Hills Board of Trustees, respectfully demands judgment as follows:

A. For dismissal of the Verified Petition for Writ of Certiorari, on the merits and with prejudice;

B. For attorney fees, costs and disbursements; and

C. For such other and further relief as deemed just and equitable.

Dated this 14th day of September, 2026.

CRIVELLO, NICHOLS & HALL, S.C.
Attorneys for Respondent

Electronically Signed by:

By: /s/ Mary E. Nelson
MARY E. NELSON
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